



Notification Waiver Determination

CVC Capital Partners – IFF's Food Ingredients business

Acquisition	CVC Capital Partners plc (together with its affiliates and subsidiaries, CVC), together with Foxtrot US Bidco Inc, Foxtrot UK Bidco Limited and Foxtrot Denmark Bidco ApS (the Purchasers), applied for a notification waiver in respect of its proposed acquisition of approximately 90% of the equity interests in International Flavors & Fragrances Inc.'s (together with its direct and indirect subsidiaries, IFF) Food Ingredients business, as described in the transaction documents provided as part of the application (the Acquisition). As a result of the Acquisition, CVC, through the Purchasers, will own a majority stake in, and have sole control over, IFF's Food Ingredients business and hold a majority of the votes of the Board of Directors of the company that ultimately controls the Food Ingredients business. IFF will retain a non-controlling minority stake of approximately 9.9%. In Australia, the transferring IFF Food Ingredients business entities will be Danisco Australia Pty Limited, Nutrition & Biosciences Australia Pty Ltd, Solae Australia Pty Limited, and Taura Natural Ingredients Holdings Pty Limited.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	17 August 2026

Parties to the Acquisition	The Purchasers are indirectly controlled by funds or vehicles advised or managed by affiliates of CVC. CVC is a global alternative investment manager focused on private equity, credit, infrastructure and secondaries, and includes CVC Capital Partners plc (CVC plc), each of its subsidiaries from time to time and the CVC Funds (defined below). CVC plc is listed on the Amsterdam Stock Exchange. As it relates to the CVC Network's private equity activities, CVC plc indirectly, through certain of its subsidiaries from time to time, provides investment advice to and/or manages investments on behalf of certain funds and investment vehicles (the CVC Funds). CVC holds interests in a number of companies active in a variety of industries around the world, including in financial services, chemicals, utilities, manufacturing, retailing and distribution, in Europe, the US and the Asia-Pacific region. IFF is a creator and manufacturer of products for the food, beverage, health and biosciences and scent sectors.
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	IFF's Food Ingredients business develops, manufactures and sells ingredient solutions for the food and beverage industry. Its main product lines are developed across seven key operations: ingredient systems, protein solutions, emulsifiers, texturants, food inclusions, sweeteners, and food protection. Both CVC (through its portfolio company DFE Pharma) and IFF's Food Ingredients business produce and supply microcrystalline cellulose (MCC), although DFE Pharma supplies MCC for pharmaceutical applications, and IFF's Food Ingredients business supplies MCC for food applications. CVC is also in the process of acquiring the IRCA Group, a global manufacturer of food ingredient solutions and semi-finished products for pastry chefs, chocolatiers, gelato makers and food manufacturers. The IRCA Group and IFF's Food Ingredients business both supply certain food ingredient solutions.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, the notification waiver application in respect of CVC's proposed acquisition of the IRCA Group, and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. the parties' combined share in the supply of MCC (for pharmaceutical and food applications to customers) in Australia is low and the increase in share of supply arising from the Acquisition would be small b. there are alternative suppliers of MCC (for both pharmaceutical and food applications) to customers in Australia c. the parties' combined share in the supply of food ingredient solutions to customers in Australia (including the IRCA Group's share) is low, and the increase in share of supply arising from the Acquisition would be small d. there are alternative suppliers of food ingredient solutions to customers in Australia e. there is a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition

	effects more generally, see the ACCC’s guidance on notification waivers and merger assessment guidelines .
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act